

Northstar Retail Group / Apex Data Systems MSA

Section 4.2 Payment Terms. Any disputed invoice must be paid in full before review.
Supplier may suspend services immediately without notice for late payment.

Section 7.1 Limitation of Liability. Customer liability is unlimited for payment obligations, data usage, confidentiality, indirect losses, and business interruption claims.
Supplier aggregate liability shall not exceed fees paid in the previous 30 days.

Section 7.2 Supplier shall be liable for all losses arising from service interruptions, including indirect or consequential damages, without limitation.

Section 9.3 Service Levels. Service credits are the sole remedy and capped at 3 percent.
Planned maintenance may occur at any time.

Section 11.2 Data Protection. Supplier may process Customer Data using subcontractors in any jurisdiction and does not commit to specific controls, audit rights, incident timelines, or data deletion windows.

Section 13.4 Termination. Supplier may terminate for convenience on 15 days notice.
Customer may terminate only after material breach remains uncured for 90 days.

Section 18.6 Change Requests. Supplier may adjust timelines and fees for scope changes, dependency delays, or resourcing constraints.